

25NWLC70729 25NWLC70729

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-08-07

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Case Number: 25NWLC70729 Hearing Date: August 7, 2026 Dept: Y

25NWLC70729: DNF ASSOCIATES LLC vs RICARDO VAZQUEZ

Tentative Ruling:

The Court has read and considered Defendant Ricardo Vasquez's ("Defendant") Motion to Dismiss with Prejudice ("Motion"), which was filed on April 9, 2026 and set for hearing on August 7, 2026. The Court has also reviewed Plaintiff DNF Associates, LLC's ("Plaintiff") Opposition to Defendant's Motion to Dismiss. In addition, the Court notes that Defendant filed a Motion to Compel Arbitration, currently set for hearing on October 30, 2026.

The Court declines to rule on the Motion to Dismiss at this time. Plaintiff's Complaint does not attach Synchrony's Cardmember Agreement containing the arbitration terms, and neither party has submitted that agreement. The terms of the agreement may be relevant to the Motion to Dismiss.

The Court disagrees with Plaintiff's assertion that "the forum question is therefore settled: arbitration is unavailable, and this action proceeds in this Court on its merits." The forum question is not settled. Defendant has elected arbitration and filed a Motion to Compel Arbitration, set for hearing on October 30, 2026. The Court advances that hearing to September 11, 2026 at 10:30 a.m. in Department Y. Oppositions and replies shall be filed and served pursuant to the Code of Civil Procedure. Plaintiff is ordered to submit a copy of the subject agreement with its Opposition.

The Court notes that the letter attached by Defendant to the Motion to Dismiss states that "Claimant has filed a Demand for Arbitration." The letter further states that "[b]efore the filing of this arbitration, DNF Associates, LLC failed to comply with the American Arbitration Association's (AAA) policies regarding consumer claims, set forth in the Consumer Due Process Protocol and the Consumer Arbitration Rules, including the Costs of Arbitration, and/or removed themselves from the Consumer Clause Registry, which can be found on our website, www.adr.org/clauseregistry. Therefore, we must decline to administer the claim and any other claims between this business and its consumers at this time."

The letter also states that the "AAA will follow any court order regarding how the arbitration should proceed."

The hearing on Defendant's Motion to Dismiss is continued to September 11, 2026, to be heard concurrently with Defendant's Motion to Compel Arbitration. At that hearing, the Court will determine whether a further continuance is warranted or whether a ruling on the Motion to Dismiss is appropriate.

Plaintiff to give notice.